

URBAN DEVELOPMENT AUTHORITY LAW, No. 41 of 1978

OF THE NATIONAL STATE ASSEMBLY

[Certified on 6th September, 1978]

Printed on the Orders of Government

MIDI = AT THE DEPARTMENT OF GOVERNMENT PRINTING, SRI LANKA

TO BE PURCHASED AT THE GOVT. PUBLICATIONS BUREAU, COLOMBO

Price: 85 cents Postage: 20 cents

L. D.—O. 65/77.

A LAW TO PROVIDE FOR THE ESTABLISHMENT OF AN URBAN DEVELOPMENT AUTHORITY TO PROMOTE INTEGRATED PLANNING AND IMPLEMENTATION OF ECONOMIC, SOCIAL AND PHYSICAL DEVELOPMENT OF CERTAIN AREAS AS MAY BE DECLARED BY THE MINISTER TO BE URBAN DEVELOPMENT AREAS AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

BE it enacted by the National State Assembly of the Republic of Sri Lanka as follows:—

1. Short title and date of operation. This Law may be cited as the Urban Development Authority Law, No. 41 of 1978, and shall come into operation on such date as the Minister may appoint by Order published in the Gazette.

PART I

ESTABLISHMENT AND CONSTITUTION OF THE URBAN DEVELOPMENT AUTHORITY

2. (1) With effect from such date as may be fixed by the Minister by Notification published in the Gazette, there shall be established an Authority which shall be called the Urban Development Authority of Sri Lanka, hereinafter referred to as the " Authority ".

(2) The Authority shall be a body corporate with perpetual succession and a common seal and may sue and be sued in its corporate name.

(3) The head office of the Authority shall be in Colombo.

(4) The Authority may, with the prior approval of the Minister, establish and maintain branch offices.

3. (1) Where the Minister is of opinion that any area is suitable for development, the Minister may by Order published in the Gazette, declare such area to be an Urban Development Area (hereinafter referred to as a " development area ").

(2) An Order under subsection (1) declaring an area as a development area shall define that area by

setting out the metes and bounds of such area.

(3) The Authority shall develop every development area for the better physical and economic utilization of such area.

4. (1) The management and administration of the affairs of the Authority shall be vested in a Board of Management (hereinafter referred to as " the Board ") which shall consist of—

(a) a Chairman nominated by the Minister;
(b) a senior officer of the Ministry of the Minister in charge of the subject of Local Government nominated by such Minister;
(c) a senior officer of the Ministry of the Minister in charge of the subject of Finance nominated by such Minister;
(d) a senior officer of the Ministry of the Minister in charge of the subject of Lands nominated by such Minister;
(e) a senior officer of the Ministry of the Minister in charge of the subjects of Irrigation, Power and Highways, nominated by such Minister;
(f) a senior officer of the Ministry of the Minister in charge of the subject of Industries nominated by such Minister;
(g) a senior officer of the Ministry of the Minister in charge of the subject of Transport nominated by such Minister;
(h) a senior officer of the Ministry of the Minister in charge of the subject of Health nominated by such Minister;
(i) a senior officer of the Ministry of the Minister in charge of the subject of Education nominated by such Minister;
(j) the person holding office for the time being as Director, Town and Country Planning;
(k) the person holding office for the time being as Chairman, National Housing Development Authority;
(l) the person holding office for the time being as General Manager of the Authority, who shall be the Secretary of the Board;
(m) two other members, other than state officers, nominated by the Minister to represent the interests of local authorities ; and
(n) two other members nominated by the Minister from among persons who appear to him to have a knowledge of, and experience in, urban development.

(2) A person shall be disqualified for nomination, or for continuing, as a member of the Board—

(a) if he is, or becomes, a Member of the National State Assembly ; or
(b) if he is not, or ceases to be, a citizen of Sri Lanka.

(3) The Chairman and the members nominated by the Minister under paragraphs (a), (m) and (n) of subsection (1) shall subject to the provisions of sub-sections (4) and (7) hold office for a term of three years but shall be eligible for re-nomination.

(4) The Minister may remove from office the Chairman or any member—

(a) if he becomes subject to any disqualification mentioned in subsection (2) ;
or
(b) if he becomes permanently incapable of performing his duties owing to physical disability or unsoundness of mind ; or
(c) if he does any act or thing which, in the opinion of the Minister, is likely to bring the Board to disrepute :

Provided, however, that no member nominated under paragraphs (b) to (i) of subsection (1), shall be removed from office under this subsection without the concurrence of the Minister who nominated such member.

(5) In the event of the vacation of office by the Chairman or any other member of the Board, or his removal from office under the provisions of the preceding subsection, the Minister may nominate

another person to hold such office during the unexpired part of the term of office of the member whom he succeeds :

Provided, however, that if such vacation of office or removal from office is by, or of, a member nominated under paragraphs (b) to (i) of subsection (1), no nomination shall be made under this subsection without the concurrence of the Minister who nominated such member.

(6) If the Chairman or any member of the Board is temporarily unable to discharge the duties of his office due to ill health or absence from Sri Lanka or for any other cause, the Minister may nominate some other person to act in his place as Chairman or as member :

Provided, however, that if the member so unable to discharge the duties of his office is a member nominated under paragraphs (b) to (i) of subsection (1), no nomination shall be made under this subsection without the concurrence of the Minister who nominated such member.

(7) The Chairman or any member of the Board may at any time resign his office by letter to that effect addressed to the Minister.

(8) The Minister may, by Order published in the Gazette, remove any member from office without assigning the reason therefor and such removal shall not be called in question in any Court:

Provided, however, that no member nominated under paragraphs (b) to (i) of subsection (1) shall be removed under this subsection without the concurrence of the Minister who nominated such member.

(9) The Chairman or any member of the Board may be paid such remuneration out of the Fund of the Board, as may be determined by the Minister.

(10) The members nominated under paragraphs (b) to (i) of subsection (1) shall subject to the provisions of subsections (4) and (7) hold office for a term of three years.

(11) The Chairman of the Board shall if present preside at all meetings of the Board. In the absence of the Chairman from any such meeting, the members present shall elect one of the members to preside at the meeting.